IN THE INDUSTRIAL COURT OF MALAYSIA
CASE NO.: 22/4-1406/24

BETWEEN

MUHAMMAD RIFA'I BIN SULAIMAN

AND

PUSAT PERNIAGAAN MATAHARI SDN BHD

AWARD NO. 1809 OF 2025

BEFORE : **Y.A. TUAN PARAMALINGAM A/L J. DORAISAMY**
- **Chairman**

VENUE : **Industrial Court of Malaysia, Kuala Lumpur**

DATE OF REFERENCE : **11.11.2024**

DATES OF MENTION : **18.12.2024; 28.02.2025; 05.05.2025 & 15.07.2025**

DATE OF HEARING : **19.08.2025**

REPRESENTATION : **Mr. K. Gunaseelan**
Malaysian Trades Union Congress (MTUC)
Representative for the Claimant

Mr. Teh Hong Jet
Messrs. Tan Kim Siong & Teh Hong Jet
Counsel for the Company

REFERENCE :

This is a reference made under Section 20 (3) of the Industrial Relations Act 1967 (Act 177), arising out of the dismissal of **Muhammad Rifa'i Bin Sulaiman** (hereinafter referred to as "*the Claimant*") by **Pusat Perniagaan Matahari Sdn Bhd** (hereinafter referred to as "*the Company*") on 17 May 2024.

AWARD

[1] The reference by the Director General of Industrial Relations ("*DGIR*") in this case required the Court to hear and determine the Claimants' complaint of dismissal by the Company on 17 May 2024.

I. Procedural History

[2] The Court received the letter pertaining to the DGIR's reference under Section 20(3) of the Industrial Relations Act 1967 on 15 November 2024.

[3] The matter was fixed for mention on 18 December 2024, 28 February 2025, 5 May 2025 and 15 July 2025.

[4] The trial proceeded on 19 August 2025.

II. Factual Background

[5] The Claimant commenced employment as a Personal Driver cum Bodyguard to the Managing Director of the Company effective 1 August 2019 with a monthly salary of RM3,500.00. He was thereafter re-designated to the position of Chief Security Officer effective 1 February 2023 with a salary of RM4,500.00 per month. His last drawn salary was RM4,500.00 per month and an accommodation allowance of RM300 per month.

[6] On 8 May 2023, the Claimant had met with an accident at the store area in the Company's headquarters in Shah Alam. He was assisting his colleague to lift and/or move a box that weighed approximately 15kg, when he suffered numbness to his

back. He informed the Company's Operation Director, i.e. En. Khairul and was subsequently warded at the KPJ Selangor Specialist Hospital (Emergency).

[7] The Claimant contends that a diagnosis was carried out by the KPJ Selangor Specialist Hospital and found that he had suffered an injury to his spine and thus required a Posterior Lumbar Interbody Fusion (PLIF) surgery. He was warded in the hospital for 10 days and given medical leave until 29 July 2023. Subsequently, the Claimant had to undergo physiotherapy after the surgery and had to carry out his duties virtually, i.e. working from home.

[8] The Claimant contends that the Company was not concerned about the injury that he had suffered whilst at work and did not give any form of assistance to him. He was subsequently admitted to the emergency ward at KPJ Selangor Specialist Centre on 29 February 2024 due to an injury to his spine and hand and had undergone a percutaneous disc compression surgery and his medical leave was extended.

[9] The Company meanwhile contends that most of the security issues of the Company were handled and resolved at the Headquarters level in the absence of the Claimant and had to stretch its other personnel to cover and perform the duties and responsibilities of the Claimant while the Claimant was on hospitalization leave.

[10] The Company further contends that its Managing Director and Chief Executive Officer at that time, i.e. the late Mr. Chong Joo Kheang together with the Human Resource Manager, i.e. Cik Zakyah Abu Bakar (COW-2) and the Human Resource team had visited the Claimant in the hospital in order to offer support and assistance

to the Claimant. The Company had also assisted the Claimant in preparing the necessary documents for submission to SOCSO.

[11] The Claimant reported back to work from 15 January 2024 until 19 February 2024 for light duties, when he informed COW-2 that he was on hospitalization leave from 18 February 2024 to 6 April 2024. On 19 March 2024, the Company received a medical report dated 16 March 2024 from Dr. Askandar Kamel ("*Dr. Askandar*") of KPJ Selangor Specialist Hospital ("*the 1st Medical Report*") stating that the Claimant underwent cervical disc decompression and excision ganglion right wrist procedures on 4 March 2024.

[12] After receiving the 1st Medical Report, the Company wrote to the said Dr. Askandar on 29 March 2024 seeking professional opinion as to whether or not the Claimant would be fit to work. On 5 April 2024, Dr. Askandar replied stating that the Claimant had undergone percutaneous disc decompression and it would take about 2 months before he is fit to start work again. Dr. Askandar also stated that the Claimant's condition would be reviewed on 11 May 2024.

[13] The Company contends that on 13 May 2024, it received a further medical certificate from the Claimant stating that his hospitalization leave would be extended again from 12 May 2024 to 25 May 2024. The Claimant had been on hospitalization leave due to his medical condition for too long, i.e. 373 days, from the date of his first operation on 10 May 2023. The Claimant was holding a key role and an important position as Head of Security in order to ensure that the operations run smoothly. The Company had to stretch its other personnel to cover and perform the Claimant's duties

and responsibilities for 373 days during the Claimant's absence. The Company was left in a very difficult position for such a long time and could no longer afford to run its operation in such manner.

[14] The Company thus contends that as a result of the accident and surgery, the Claimant had been on hospitalization leaves for the period from 8 May 2023 to 11 May 2024:-

Date of MC	**Period**	**Number of Days**
08.05.2023	08.05.2023 - 24.05.2023	15 days
24.05.2023	25.05.2023 - 24.06.2023	31 days
23.06.2023	25.06.2023 – 29.07.2023	35 days
28.07.2023	30.07.2023 - 29.08.2023	31 days
29.08.2023	30.08.2023 – 29.09.2023	31 days
27.09.2023	30.09.2023 – 03.11.2023	35 days
03.11.2023	04.11.2023 – 08.12.2023	35 days
06.12.2023	09.12.2023 – 13.01.2024	35 days
12.01.2024	14.01.2024 – 17.02.2024	35 days
16.02.2024	18.02.2024 – 06.04.2024	49 days
19.03.2024	07.04.2024 – 11.05.2024	35 days

[15] In view of the prolonged illness and the uncertainty as to when the Claimant would be fit to return to work as the Head of Security, the Company had no other alternative but to terminate his contract of employment due to frustration as a result of his prolonged illness.

III. The Function Of The Industrial Court

[16] The role of the Industrial Court pertaining to a reference under section 20(3) of the Industrial Relations Act 1967 is to ask itself a question whether there was a dismissal; and, if so, whether it was with or without just cause or excuse (**Wong Chee Hong v. Cathay Organisation (M) Sdn. Bhd. [1988] 1 MLJ 92**).

IV. Issues To Be Decided

[17] The issues that arise in this case are:-

(i) whether the Claimant's prolonged illness and uncertainty as to when he will return to work frustrated his employment contract with the Company;

(ii) if so, whether the dismissal of the Claimant by the Company was done with or without just cause or excuse.

V. The Court's Findings And Reasons

[18] The Claimant's employment contract was terminated on the ground of frustration of contract due to the prolonged illness of the Claimant, wherein the Claimant had been on medical/hospitalization leave for 373 days.

[19] The letter entitled '*Termination of your Contract of Employment due to frustration by reason of prolonged illness*' dated 17 May 2024 ("*the Termination Letter*") (*at pp. 25-26 of COB-1*) issued by the Company to the Claimant states, *inter alia*, as follows:-

> "*It is with regret that you have been on prolonged hospitalisation leave from 8.5.2023 till 11.5.2024. As per the Company's record, the Medical*

Certificates (MC) for your hospitalisation leave that were given by you are as follows:-

Particular	***Date***	***Period***	***No. of days***
1. MC for Hospitalisation leave	*18.5.23*	*8.5.23-24.5.23*	*17*
2. MC for Hospitalisation leave	*24.5.23*	*25.5.23-24.6.23*	*31*
3. MC for Hospitalisation leave	*23.6.23*	*25.6.23-29.7.23*	*35*
4. MC for Hospitalisation leave	*28.7.23*	*30.7.23-29.8.23*	*31*
5. MC for Hospitalisation leave	*29.8.23*	*30.8.23-29.9.23*	*31*
6. MC for Hospitalisation leave	*27.9.23*	*30.9.23-3.11.23*	*35*
7. MC for Hospitalisation leave	*3.11.23*	*4.11.23-8.12.23*	*35*
8. MC for Hospitalisation leave	*6.12.23*	*9.12.23-13.1.24*	*35*
9. MC for Hospitalisation leave	*12.1.24*	*14.1.24-17.2.24*	*35*
10. MC for Hospitalisation leave	*16.2.24*	*18.2.24-6.4.24*	*49*
11. MC for Hospitalisation leave	*19.3.24*	*7.4.24-11.5.24*	*35*

On 13.5.2024, the Company received a further MC from you stating that your hospitalisation leave would be extended again from 12.5.2024 to 25.5.2024.

You have been on hospitalisation leave due to your illness and/or medical condition for too long i.e. 373 days as at the date of this letter. The Management finds that your incapacity or illness is serious as it has prolonged for too long for more than a year.

You are holding a key role and an important position in your department as Head of Security to oversee and ensure that the operations run smoothly. Your position has been vacant for too long and the Company had stretched its other personnel to cover and perform your duties and responsibilities in your absence. The Company is in a very difficult

position for such a long time and could no longer afford to run its operation in such manner.

In view of your prolonged illness and the uncertainty as to when you are fit to return to perform your duties as the Head of Security, the Management has no other alternative but to take this difficult decision to terminate your contract of employment with immediate effect due to frustration as a result of your prolonged illness".

[20] The Claimant suffered his first injury on 8 May 2023 whilst at work when he was carrying a 15kg box, when he felt numbness on his back. He was thereafter warded at the KPJ Selangor Specialist Hospital for 10 days and underwent a Posterior Lumbar Interbody Fusion (PLIF) surgery. He was on medical leave from 8 May 2023 until 29 July 2023, i.e. a total of 83 days (the medical certificates for the period between 8 May 2023 until 29 July 2023 are collectively exhibited *at pp. 8 – 10 of COB-1*). This was not disputed by the Claimant.

[21] The Claimant's medical leave was further extended for the period from 30 July 2023 until 6 April 2024, i.e. a total of 251 days (the medical certificates for the period between 30 July 2023 until 6 April 2024 are collectively exhibited *at pp. 11 – 17 of COB-1*). Again, this is not disputed by the Claimant.

[22] Whilst being on medical leave during the period between 18 February 2024 until 6 April 2024, the Claimant suffered yet another injury to his back on 29 February 2024 and had to undergo a percutaneous disc compression surgery as well as a surgery to his right hand.

[23] At this point in time, the Company understandably became agitated due to the numerous extensions to the Claimant's medical leave which was stretching to almost one year at that point in time, and thus had written to the Claimant's surgeon at KPJ Selangor Specialist Hospital, i.e. Dr. Askandar on 29 March 2024 (*at pp. 21-22 of COB-1*) inquiring about the Claimant's projected return to work. Dr. Askandar replied *via* letter dated 3 April 2024 (*at pp. 23-24 of COB-1*) stating that it would take about 2 months before a patient, such as the Claimant, who had undergone percutaneous disc decompression surgery to be fit to work again.

[24] Lo and behold, the Claimant went on yet another extended medical leave from 12 May 2024 to 25 May 2024 (*at p. 19 of COB-1*). After having been patient for almost 373 days whilst the Claimant was on continuous medical leave since 8 May 2023, this final tranche of medical leave was the straw that broke the camel's back. The Company issued the Termination Letter on 17 May 2024 after having waited patiently for 373 days for the Claimant to return to work.

[25] The Claimant meanwhile contends, amongst other things, that the Company had been unfair to his predicament when they failed to wait for one more month before he was fit to return to work on 26 June 2024. However, the Company was still in the dark as at 17 May 2024 whether the Claimant would ever be able to return to work.

[26] It must be borne in mind that the Company waited more than one year for the Claimant to recover and be fit again to resume his duties in the Company. They had given the Claimant sufficient time and opportunity for him to recover fully and return back to work. During the Claimant's absence, the Company had to re-deploy some of

their other staff to cover the Claimant's duties and responsibilities. The Company is an on-going concern incorporated with the sole purpose of making profits in their business, and thus could ill afford to accommodate an employee who was prone to prolonged absences, either medically or otherwise. Rather than being an asset to the Company, the Claimant had instead became a liability.

[27] The Claimant also contends that there can be no frustration of contract as the Company had allowed him to carry out light duties. It is pertinent to note however that out of the 373 days that the Claimant had been on medical leave, he had only performed the light duties between 15 January 2024 to 26 February 2024 (as can be seen from the Daily Time Records for the months of January 2024 (*at p. 27 of COB-1*) and February 2024 (*at p. 28 of COB-1*)), i.e. a little over one month. Furthermore, it was the Claimant who had offered to do some light work. The Company never approached him to do any work during his medical leave, as medical leave are given for an employee to recuperate at home. The Claimant was technically on medical leave and the Company was unable to give any instructions of their own to the Claimant to carry out his duties and responsibilities as the Head of Security. In any event, the light work that the Claimant carried out was for approximately one month only out of the 373 days he had been on medical leave.

[28] COW-2 testified as follows with regard to the issue of the Claimant performing light duties (*COWS-2; Q & A Nos. 8 to 11*):-

> "*Q8. Based on the daily time record – detailed of the Claimant for the months of January and February 2024, did the Claimant report for duty?*

A8. Yes, he did. In January 2024, he did report for work between 15.1.2024 and 31.1.2024. In February 2024, he did report for work between the period of 1.2.2024 and 26.2.2024.

Q9. Why did he still report for duty despite on hospitalization leave?

A9. Sometime in January 2024, the Claimant met the Director of the Company to check if there were any light duties for him to perform. The Claimant was informed that there were light duties for him to do. On 15.1.2025, the Claimant agreed to return to work to perform some light duties with a schedule from 7 a.m. to 3.30 p.m. During the period from 15.1.2024 to 26.2.2024, the Company has assigned the Claimant with some administrative works i.e. communicating with the security agency regarding new agreement and work schedule of the Company's security guard.

Q10. What happened after 17.2.2024?

A10. The Company subsequently received a hospitalization leave from the Claimant stating that he would be unfit to work for 49 days from 18.2.2024 to 6.4.2024. (See page 17 of COB-1)

Q11. Did the Claimant report for duty in performing the light duties after 26.2.2024?

A11. He did not".

[29] In the case of **Pauline Peck v. Saratim Insurance Agency Services Sdn Bhd [2010] 3 ILR 630** the learned Industrial Court Chairman, P Iruthayaraj D Pappusamy, considered the principles and/or factors in determining frustration of an employment contract due to an employee's illness:-

"*1.* ***One of the ways by which a contract of employment may come to an end apart from the dismissal of an employee is by the application of the doctrine of frustration. By 'frustration' it is meant that there has been such a change of circumstances that events make it physically impossible for a contract to be performed as for example, where the illness of the employee lasts or is likely to last for a prolonged period. It cannot be disputed that illness or incapacity which is permanent will frustrate the contract, and so will illness which is of so prolonged a nature as to prevent the employer from getting substantially what he has bargained for as it is also accepted that an employee must provide satisfactory performance of the work which he has contracted to do****.* (Kumpulan Guthrie Sdn. Bhd. v. K.P. Sukumari Amana Narayana Meon, *Award No. 33 of 1973* "Kumpulan Guthrie"*);*

2. Whether a particular illness is of such a character as to put an end to the employment, is always a question of fact for the court to decide. (Kumpulan Guthrie);

3. ***The incapacity or illness should not be temporary, but serious and prolonged, so that the employee cannot be expected to perform his duties in the foreseeable future. In such circumstances, the employer has the right to terminate the employee's services****.* (A.T. Fernandez v. See Sun Estate, Award No. 64 of 1974);

4. ***Where without the fault of either party, some supervening event occurs which was not reasonably foreseeable at the time when the***

contract was made and which renders further performance of the contract totally impossible or something radically different from what the parties bargained for, the contract is forthwith discharged by operation of law. Absence of ill health may take the form of either of persistent brief absences over a long period of time, or a single long absence from work. In the latter situation it may exceptionally be the case that the contract is frustrated*. Where this is the case there is in law no dismissal and therefore the employee's claim for unfair dismissal is bound to fail.* (MHS Aviation Sdn. Bhd. v. Zainol Akmar Hj. Mohd Noor [2001] 2 ILR 336 *(Award No. 419 of 2001)*;

5. Where there is a dismissal, the starting point for analyzing the duty of the tribunal in deciding whether or not the dismissal is fair, the court emphasized the importance of scrutinizing all the relevant factors. Every case depends on its own circumstances. ***The basic question which has to be determined in every case is whether, in all the circumstances, the employer can be expected to wait any longer and if so, how much longer? The relevant circumstances include "the nature of the illness, the likely length of the continuing absence, the need of the employers to have done the work, which the employee was engaged to do"*** (Spencer v. Paragon Wallpapers Ltd [1976] IRLR 373)

6. While the employers cannot be expected to be, nor is it desirable that they should set themselves up as medical experts, the decision to dismiss is not a medical question, but a question to be answered by the

employers in the light of the available medical advice. (East Lindsey District Council v. Daubney [1977] IRLR 181)

7. ***In cases of intermittent absences from work due to ill-health there was no obligation on an employer to call medical evidence. An employer had to have regard to the whole history of the employment and to take into account a range of factors including - the nature of the illness; the likelihood of it recurring or some other illness arising; the length of the various absences and the spaces of good health between them; the need of the employer for the work done by the particular employee; the impact of the absences on others who work with the employee; the adoption and the carrying out of the policy; the important emphasis on a personal assessment in the ultimate decision and of course, the extent to which the difficulty of the situation and the position of the employer had been made clear to the employee so that the employee realises that the point of no return, the moment when the decision was ultimately being made may be approaching****.* (Lynock v. Packaging Ltd. [1988] IRLR 510)

8. ***The employers cannot be expected to go to unreasonable length in seeking to accommodate someone who is not able to carry out his job to the full extent****.* (Garricks (Caterers) Ltd v. V Nolan [1980] 1 IRLR 259)"

(Emphasis added)

[30] In fact, the Claimant himself in his testimony admitted the seriousness of the injuries that he had suffered, in particular the second injury sustained on 29 February 2024 (*CLWS-1; Q & A No. 16*):-

"***S.16 Didalam Ikatan Dokumen Syarikat muka surat 22 hingga 23, petikan dari surat doctor mengesahkan bahawa anda memerlukan cuti lebih kurang 2 bulan;***

"He was admitted from 29/02/2024 to 07/03/2024 for the above surgeries. Post operative, he has been advised to continue medical leave.

In normal circumstances, it would take about 2 months before a patient who had undergone percutaneous disc decompression is fit to start work.

Muhammad Rifa'i's condition will be reviewed on 11/05/2024".

Boleh beritahu kepada Mahkamah, tahap keseriusan pembedahan yang anda alami?

*J.16 Ya Yang Arif, saya telah mengalami 2 kali kemalangan/kecederaan yang melibatkan pembedahan tulang belakang, dan ianya berpunca dari kecederaan dan pembedahan pertama pada 10hb Mei 2023. Saya tekun dalam melakukan fisioterapi walau betapa sakit pun, tetapi demi mencari punca pendapatan, saya tekun dan rajin supaya saya dapat pulih dan kembali bekerja seperti sebelum ini. Menurut doctor, saya boleh melakukan kerja-kerja ringan dan saya juga telah lapor untuk bekerja. Saya tidak mengambil cuti sakit yang panjang seperti yang dikatakan oleh Syarikat "prolonged illness". **Apabila kali***

kedua pembedahan berlaku, kecederaan ini makin serius. Adalah wajar untuk diberikan rehat yang secukupnya kerana pembedahan yang melibatkan tulang belakang adalah satu pembedahan besar dan saya mempunyai risiko untuk cacat sepanjang hidup jika tidak dijaga dengan baik. Selepas pembedahan, saya dikira separa cacat hampir selama 1 bulan terlantar di katil dan berharap untuk pulih seperti biasa. *Saya juga giat melakukan fisioterapi supaya dapat pulih seperti sediakala dan berharap dapat bekerja semula*".

(Emphasis added)

[31] Due to the seriousness of the injuries suffered by the Claimant and the uncertainty as to when he would be able to return to work, the Company, after having waited 373 days, finally decided enough was enough and brought the Claimant's employment contract to an end. The overwhelming evidence before the Court, despite the Claimant's contention that he was working hard to regain fitness, is that there was no certainty as to when he would be fit again to work. The Claimant was eventually declared fit to work by his surgeon at KPJ Selangor Specialist Hospital, i.e. Dr. Askandar, on 26 June 2024 (*at p. 11 of CLB-2*) (which is almost one after his employment was terminated by the Company on 17 May 2024), which was a little too late taking into account the circumstances of the case. The Company was not expected to know at the time they terminated the Claimant's employment contract on 17 May 2024 that he would be able to return to work on 26 June 2024, as he was still on prolonged medial leave at that point in time.

[32] In the case of **Sathiya Kala Nagapan v. Malayan Banking Bhd [2016] 3 ILR 26** it was held by the learned Industrial Court Chairman, Mary Shakila G Azariah:-

> "*It is the bank's pleaded case that the claimant was dismissed for 2 reasons - firstly that she had taken excessive medical leave from June 2009 to November 2011 that is 273 days and secondly, for being absent without approval for 35 days. The bank submits that her persistent absenteeism is an indication to not perform her contractual obligations arising under the contract of employment. In the case of* General Tyre Retreaders Sdn Bhd v. Vadiveloo Munusamy [1996] 2 ILR 1419 (Award No. 532 of 1996) *it was held that* ***extensive absence causes inconvenience and has a disruption effect on the productivity of the business****. There is a wealth of cases where it has been held that taking excessive medical leave can be a serious misconduct and attracts the punishment of dismissal. It has been held that when an employee takes excessive medical leave it indicates that he is unwilling to perform his duties as required under the contract of employment with the Bank.*
>
> *In* Mastura Mohd Mokhtar v. Affin Bank Berhad [2014] 3 ILR 113 (Award No. 540 of 2014) *it was held that where the employee is unable to perform her duties in accordance with the terms and conditions of service the employer can treat the contract of employment as frustrated. Based upon equity and good conscience and the substantial merits of the case in the said case it was held that the contract of employment was frustrated and the termination of the claimant's contract of employment was with just cause or excuse.*

The issue before the court as I glean it to be is whether the termination of the claimant's employment contract was the product of a unjust dismissal or frustration of contract. If the dismissal was unjust the claimant would been entitled to relief whereas frustration of contract would discharge the employer from any liability. At the time of her dismissal the claimant had been absent for 68 days from 1 December 2011 to 1 March 2012 and further 6 days on 5, 6, 19, 20, 25 and 27 January 2012 which she claimed to be on medical leave but failed to produce any documentation or supporting evidence to justify her absence. ***The court having analysed the facts and evidence in that from June 2009 to the date of her dismissal the claimant had absented herself for more than several hundreds of days having been on medical leave and unapproved leave and considering the fact that the claimant had taken no further steps to satisfy her employer that she was now certified medical fit for work it was reasonable for the bank to have considered her contract of employment as having being frustrated. As such there is no obligation or liability that the court can pin on the bank. Given the facts and evidence the bank was right to think that the contract was frustrated as a result of the claimant's persistent absenteeism****.*

A contract is deemed frustrated where it is impossible for that contract to continue. In employment that means that the employment ends. It will occur only where the circumstances that lead to the consideration to terminate the contract were unforeseen and it is impossible to continue the employment relationship. Once

frustrated each party is discharged from future obligations under the contract and neither party may sue for breach. There is no dismissal in law. Illness causing long term absenteeism from work renders an employee incapable of carrying out the functions of his job and the employer under these circumstances is entitled to treat the contract as at an end as the purpose of the contract is unachievable the contracts will take into account when determining if a contract has been frustrated in ill health absence will be nature of the job role itself, the employer's length of service, the length and effect of the illness, whether the employee needed replacing and whether it was reasonable for the employer to wait any longer for the employee to return to work*.*

Applying these principles to the facts of the case where the evidence clearly shows that the claimant had taken excessive medical leave no doubt for a definite medical condition and certified by the Bank's panel doctors, bank was right in treating the contract of employment as having being frustrated. As held in Spencer v. Paragon Wallpapers Ltd (1977) ICR 301 *where it was held that* ***the basic question which has to be determined in such cases is whether in all the circumstances the employer can be expected to wait any longer and if so, how much longer?*** *Every case will be different depending upon the circumstances.* ***The court opines that it is not whether the bank knew that the claimant was on medical leave or that the medical certificates were from their panel doctors for a definite medical ailment that the claimant had suffered in the given instance. The point is the bank***

had been patient carrying the claimant through from June 2009 to November 2011 and through 2012".

(Emphasis added)

[33] Similarly here, the Company had waited patiently for more than a year, in fact 373 days to be exact, for the Claimant to be fit to resume work again. But alas, there was nothing forthcoming that indicated that the Claimant was on a road to recovery. Instead, whilst being on medical leave, the Claimant suffered yet another injury which placed him on yet another long run of medical leave.

[34] After having analysed the facts and evidence produced by both parties, the Court finds that the Company was fully justified in losing their patience when they issued the Termination Letter on 17 May 2024 when they had no other choice but to bring the Claimant's employment contract on the ground of frustration of contract due to the Claimant's prolonged and persistent absenteeism due to illness.

[35] The Claimant's case is hereby dismissed.

HANDED DOWN AND DATED THIS 26TH DAY OF NOVEMBER 2025.

-signed-

(PARAMALINGAM A/L J. DORAISAMY)
CHAIRMAN
INDUSTRIAL COURT, MALAYSIA
KUALA LUMPUR